

25STCV03384 25STCV03384

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV03384 Hearing Date: July 17, 2026 Dept: 735

Locascio, et al. v. Levi, et al.

(1) Plaintiffs' Motion to Compel Responses to Special

Interrogatories from Defendant Beverly Hills Developers, LLC;

(2) Plaintiffs' Motion to Compel Responses to

Requests for Production of Documents from Defendant Beverly Hills Developers, LLC;

(3) Plaintiffs' Motion to Compel Responses to

Requests for Production of Documents from Defendant Eli Levi;

(4) Plaintiffs' Motion to Compel Responses to

Special Interrogatories from Defendant Eli Levi

BACKGROUND

This is a landlord-tenant habitability action. On February 6, 2025, Plaintiffs filed a complaint against Defendants, asserting causes of action for, inter alia, breach of the implied warranty of habitability, nuisance, violations of the Los Angeles Municipal Code, and constructive eviction.

DISCUSSION

Plaintiff moves to compel responses to sets one of special interrogatories and requests for production from Defendants Beverly Hills Developers, LLC and Eli Levi. Plaintiff served the subject

discovery on December 16, 2025. Responses were due on January 26, 2026. Plaintiff asserts that on January 21, 2026, Defendants' counsel stated they had not received the discovery requests. Plaintiff served the subject discovery again on the same date. Plaintiff did not receive responses and filed these motions on March 2, 2026.

In opposition, Defendants represent that responses to the subject discovery have been served. Defendant's counsel states that they were not timely served due to counsel's preoccupation with trial in another action. As responses have been served, the Court denies Plaintiff's motions to compel responses to discovery as moot.

Plaintiff requests sanctions in the amount of \$2,460.00 for each motion. Counsel states that each motion took 1 hour to draft and that each motion will require an additional 2 hours to attend the hearing at \$750.00 per hour. Each motion also requests a \$60.00 filing fee. As responses were not served until after the motions were filed, the Court will allow recovery of fees for drafting the motions as well as the filing fees and the fees to attend the hearing. The Court grants the requests for sanctions in the amount of \$810.00 per motion (1 hr x \$750/hr + \$60 per motion) plus \$187 against Defendant Eli Levi and \$187 against Defendant Beverly Hills Developers, LLC for Plaintiff's time in attending the hearing.

CONCLUSION

The Court denies Plaintiff's motions to compel responses to discovery as moot. The Court grants Plaintiff's requests for sanctions in the amount of \$1,807 against Defendant Eli Levi and in the amount of \$1,807 against Defendant Beverly Hills Developers, LLC.

Plaintiff to give notice.